Incident Investigation

Whether it's the businesses owner, or someone assigned by the business owner to keep track of the claim, here's some advice for the types of information the person overseeing the claim should be gathering:

About the Employee

- ☐ Name, nicknames, maiden name, previous names
- ☐ Address—current and previous (length of time living at both addresses)
- ☐ Phone number, pager number, cellular number
- ☐ Social security and driver's license numbers
- ☐ Sex
- ☐ Date of birth
- ☐ Marital status
- ☐ Dependents and immediate family contact
- ☐ Non-relative contact
- ☐ Date of hire (state hired, if applicable)
- ☐ Job classification, if applicable (insurance class or company classification)
- ☐ Vehicle (type, year, license number)
- ☐ Interests—hobbies
- ☐ Previous injuries, related or unrelated
- ☐ Comorbidities, underlying conditions that may prolong recovery such as hypertension or diabetes

About the Injury

- ☐ Time and date of injury
- ☐ Date of death (if applicable)
- ☐ State of injury
- ☐ Nature of injury (sprain, fracture, etc.)
- ☐ Body part(s) affected; any previous injury to the affected body part(s)
- ☐ Source of injury (machines, hand tools, buildings, etc.)
- ☐ Type of injury (fall, struck by object or vehicle, overexertion, repetitive motion trauma)
- ☐ Witnesses
- ☐ Work process involved (lifting, carrying, etc.)
- ☐ To whom was the injury reported
- ☐ Who filled out the first report of injury (FROI) report
- ☐ Plant or location
- ☐ Job
- ☐ Time and date the injury was reported

- □ Shift, if applicable

Oral Statement from Injured Employee

- □ Conduct the interview in a non-adversarial setting
- □ Demonstrate concern and empathy
- □ Allow the employee to talk
- □ Do not rush the employee
- □ Reenact the accident
- □ Check for photos and/or video of the accident

Written Statement from Injured Employee

- □ Note the location where the statement is taken
- □ Let the employee write the statement, if possible
- □ Statement should be written in ink
- □ Statement is taken ASAP after the injury
- □ Describe the employee's preinjury and postinjury actions
- □ Request that the employee and any witnesses sign the statement
- □ Make sure the employee initials any changes
- □ Give copy of statement to employee
- □ List the date and time of the statement

Statement from Witness(es)

- □ Note witness' location at the time of injury
- □ Record witness' relationship to the injured employee
- □ Interview witnesses individually
- □ Do not rush the witness
- □ Make sure the statement is unrehearsed

Written Statement from Witness(es)

- □ Make sure the witness writes the statement in ink
- □ Record the stated ASAP after the injury
- □ Make sure the witness records his/her actions before, during and after the time of injury
- □ Request that the witness sign the statement and initial any changes
- □ Record the date and time of the statement
- □ Give a copy of the statement to the witness

About the Claim

- ☐ Determine jurisdictional state
- ☐ Date employer first notified
- ☐ Who was notified, by whom?
- ☐ Date insurance company or service company notified
- ☐ Date state agency notified
- ☐ State case number
- ☐ Average weekly wage (AWW)
- ☐ Benefit rate
- ☐ Health care providers
- ☐ Other benefits lost (Did the employer stop paying vacation, health benefits, etc.?)
- ☐ Other benefits received
- ☐ Offset for other benefits
- ☐ Date disability started
- ☐ Date of first payment
- ☐ Projected return-to-work date
- ☐ Date case closed
- ☐ Date of maximum medical improvement
- ☐ Subrogation (Is some third party responsible?)
- ☐ Second injury fund potential

If Litigation Occurs

- ☐ Assign defense attorney, law firm
- ☐ Cease communication with injured employee about claim/injury
- ☐ Costs of litigation vs. early settlement attempt
- ☐ Final settlement